

## 25NNCV08033 25NNCV08033

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-09-02

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=ALH%2CX%2C09%2F02%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CX%2C09%2F02%2F2026)

Source SHA-256: 68b7640f92647a7510eef3a16a42b92817e76c005fa611de6145ca2e1c0761bc

Case Number: 25NNCV08033 Hearing Date: September 2, 2026 Dept: X

#20 - EDWARD M. CHAN, AS TRUSTEE OF CHAN FAMILY LIVING TRUST DATED AUGUST 26, 1988 vs WING HOP FUNG A BUSINESS OF UNKNOWN FORM, et al.

DEMURRER TO COMPLAINT (6925, 2994)

The demurrer contends

that the First Cause of Action fails to state sufficient facts and that rent

installments due before November 12, 2021 are barred by the four-year

limitations period governing written contracts. Defendants' demurrer to the First Cause of Action for breach of lease is OVERRULED. Defendants are to answer the complaint within 10 days.

A.

The First Cause of Action sufficiently

alleges breach of lease

To prevail on a

cause of action for breach of contract, the plaintiff must prove (1) the

contract, (2) the plaintiff's performance of the contract or excuse for

nonperformance, (3) the defendant's breach, and (4) the resulting damage to the

plaintiff. (Richmond v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

The First Amended

Complaint alleges a written lease, identifies the rent obligation, alleges

plaintiff's performance or excuse, describes defendants' alleged failures to

pay the full rent, and pleads resulting damages. Those allegations satisfy the

elements of a contract claim at this stage. Defendants'

assertions concerning plaintiff's acceptance of reduced payments, defendants'

pandemic-related business disruption, and alleged maintenance and repair

disputes depend on facts outside the First Amended Complaint. Those matters may

support defenses, but the Court cannot resolve them on demurrer. Accordingly, the

general challenge to the sufficiency of the First Cause of Action is overruled.

B.

The limitations argument does not dispose  
of the entire cause of action

For breach of a

written contract, that period is four years from the time the claim accrues. (Code Civ. Proc., § 337.) When a contract creates recurring payment

obligations, each breach may accrue independently, and recovery ordinarily is limited to breaches occurring within the applicable limitations period. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1198.)

Here, defendants

acknowledge that at least some alleged rent deficiencies arose within four years before commencement of the action, and argues that Plaintiff's claims

accruing before November 12, 2021, must fail because they are time-barred. (Demurrer, p. 7.) The FAC also alleges deficiencies continuing through December

2025 and thereafter. Thus, even under defendants' accrual theory, the FAC includes timely alleged breaches and states a claim for relief. Further, it is improper to sustain a "partial" demurrer. If any part of a cause of action is properly pleaded, the demurrer must be overruled. (See Campbell v. Genshlea (1919) 180 Cal. 213, 217; 4 DeMonbrun v. Sheet Metal Workers (1956) 140 Cal.App.2d 546, 566.)

Therefore, the Court

cannot sustain the demurrer to the First Cause of Action merely to eliminate damages attributable to earlier installments. This ruling does not determine whether any particular rent installment ultimately is barred. Defendants may assert the statute of limitations as an affirmative defense and seek an appropriate determination through a procedurally proper motion or at trial.

C.

The Court declines to strike allegations  
on its own motion

Defendants

alternatively ask the Court to strike the allegedly time-barred portions of the pleading. Although the Court possesses discretion to strike improper matter, defendants did not file a motion to strike, nor assert arguments, identifying the precise allegations to be

removed. The parties also

dispute whether the COVID-19 tenant protections affected accrual or tolling. Plaintiff alleges that the applicable repayment period postponed accrual until

August 1, 2022, while defendants contend that the protections restricted remedies without tolling the limitations period. (FAC, ¶ 26; Demurrer, p. 9.) Resolution of this dispute is unnecessary because the First Cause of Action includes timely alleged breaches regardless of which limitations position ultimately prevails. The Court accordingly declines to exercise its authority to strike allegations on its own motion.

#### CASE MANAGEMENT CONFERENCE

The Court sets the following dates:

Final Status Conference: Thursday, September 23, 2027 at 9:00 a.m. in Dept. X.

Bench Trial: Tuesday, October 5, 2027 at 9:00 a.m. in Dept. X.

No party has posted jury fees pursuant to Code of Civil Procedure section 631.

The Court further orders the parties to comply with the Court's Trial Preparation Order, which may be found on the LASC website (<https://www.lacourt.ca.gov/home>), "Attorneys" section, under the "Courtroom Information" link for Department X (Alhambra Courthouse). Trial counsel are ordered to personally appear – in court – for the Final Status Conference with a copy of their lodged binders so that same can be reviewed in preparation for trial.

Unless waived by the parties, Plaintiff is to give notice.